

14.—(1) In this Act, the expression “the Minister” means Interpretation, the Minister of Town and Country Planning, the expression “war damage” has the meaning assigned to it by section two of the War Damage Act, 1943, the expression “licence” means a 6 & 7 Geo. 6. justices’ licence and includes such a licence which is in suspense c. 21. by virtue of section ten of the Finance Act, 1942, and other expressions which are used in the Licensing (Consolidation) Act, 1910, have the same meanings as in that Act.

(2) Save as otherwise expressly provided, the provisions of this Act are without prejudice to the provisions of any other Act with respect to licensing and licensed premises, and in particular, and without prejudice to the generality of the foregoing words, nothing in this Act shall, save as aforesaid, be construed as prejudicing the exercise as respects licensed premises of any of the powers of any authority under the enactments relating to town and country planning with respect to the acquisition of land or the control of use of land.

15. This Act shall continue in force until the expiration of five Duration years from the date on which the Emergency Powers (Defence) of Act. Act, 1939, ceases to be in force, and shall then expire : 2 & 3 Geo. 6. c. 62.

Provided that on the expiration of this Act, subsection (2) of section thirty-eight of the Interpretation Act, 1889 (which relates 52 & 53 Vict. to the effect of repeals), shall have effect as if this Act had then c. 63. been repealed by another Act.

16.—(1) This Act may be cited as the Licensing Planning Short title (Temporary Provisions) Act, 1945. and extent.

(2) This Act shall not extend to Scotland or Northern Ireland.

CHAPTER 16.

An Act to provide for suspending the operation of certain statutes of limitation in relation to proceedings affecting persons who have been enemies or have been detained in enemy territory. [28th March 1945.]

BE it enacted by the King’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) If at any time before the expiration of the period Suspension of prescribed by any statute of limitation for the bringing of any limitation action any person who would have been a necessary party to that period where action if it had then been brought was an enemy or was detained party was an in enemy territory, the said period shall be deemed not to have enemy or been run while the said person was an enemy or was so detained, and enemy shall in no case expire before the end of twelve months from the territory.

date when he ceased to be an enemy or to be so detained, or from the date of the passing of this Act, whichever is the later :

Provided that, where any person was only an enemy as respects a business carried on in enemy territory, this section shall only apply, so far as that person is concerned, to actions arising in the course of that business.

(2) If it is proved in any action that any person was resident or carried on business or was detained in enemy territory at any time, he shall for the purposes of this Act be presumed to have continued to be resident or to carry on business or to be detained, as the case may be, in that territory until it ceased to be enemy territory, unless it is proved that he ceased to be resident or to carry on business or to be detained in that territory at an earlier date.

(3) If two or more periods have occurred in which any person who would have been such a necessary party as aforesaid was an enemy or was detained in enemy territory, those periods shall be treated for the purposes of this Act as one continuous such period beginning with the beginning of the first period and ending with the end of the last period.

Interpretation. 2.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say :—

“ action ” means civil proceedings before any court or tribunal and includes arbitration proceedings ;

“ enemy ” means any person who is, or is deemed to be, an enemy for any of the purposes of the Trading with the Enemy Act, 1939, except that in ascertaining whether a person is such an enemy the expression “ enemy territory ” in section two of the said Act shall have the meaning assigned to that expression by this section ;

“ enemy territory ” means :—

(a) any area which is enemy territory as defined by subsection (1) of section fifteen of the Trading with the Enemy Act, 1939 ;

(b) any area in relation to which the provisions of the said Act apply, by virtue of an order made under subsection (1A) of the said section fifteen, as they apply in relation to enemy territory as so defined ; and

(c) any area which, by virtue of Regulation six or Regulation seven of the Defence (Trading with the Enemy) Regulations, 1940, or any order made thereunder, is treated for any of the purposes of the said Act as enemy territory as so defined or such territory as is referred to in the last foregoing paragraph ;

“statute of limitation” means any of the following enactments, that is to say,—

the Limitation Act, 1939,	2 & 3 Geo. 6. c. 21.
section three of the Fatal Accidents Act, 1846,	9 & 10 Vict. c. 93.
section four of the Employers' Liability Act, 1880,	43 & 44 Vict. c. 42.
section ten of the Copyright Act, 1911,	1 & 2 Geo. 5. c. 46.
section eight of the Maritime Conventions Act, 1911,	1 & 2 Geo. 5. c. 57.
Rule 6 of Article III of the Schedule to the Carriage of Goods by Sea Act, 1924,	14 & 15 Geo. 5. c. 22.
subsection (1) of section thirteen of the Moneylenders Act, 1927,	17 & 18 Geo. 5. c. 21.
Article 29 of the First Schedule to the Carriage by Air Act, 1932,	22 & 23 Geo. 5. c. 34.
section one of the Law Reform (Miscellaneous Provisions) Act, 1934,	24 & 25 Geo. 5. c. 41.
subsection (1) of section seven of the Matrimonial Causes Act, 1937.	1 Edw. 8 & 1 Geo. 6. c. 57.

(2) References in this Act to any person who would have been a necessary party to an action shall be construed as including references to any person who would have been such a necessary party but for the provisions of section seven of the Trading with the Enemy Act, 1939, or any order made thereunder.

(3) References in this Act to the period during which any person was detained in enemy territory shall be construed as including references to any period immediately following the period of such detention during which that person remained in enemy territory.

(4) Subsection (2) of section fifteen of the Trading with the Enemy Act, 1939 (which provides that a certificate of a Secretary of State shall, for the purposes of proceedings under or arising out of that Act, be conclusive evidence of certain matters affecting the definition of “enemy territory”) shall apply for the purposes of any action to which this Act relates.

(5) References in this Act to any enactment or to any Defence Regulation shall be construed as referring to that enactment or Regulation as amended by any subsequent enactment or Defence Regulation.

3. This Act shall apply to proceedings to which the Crown is a party, including proceedings to which His Majesty is a party in right of the Duchy of Lancaster and proceedings in respect of property belonging to the Duchy of Cornwall.

Application
to Scotland.

4. In the application of this Act to Scotland—

(a) for subsection (1) of section one the following subsection shall be substituted :—

“ (1) If, during any period of less than ten years prescribed by any of the enactments hereinafter referred to as the period within which any action or diligence must be raised or executed or on the expiry of which any limitation on the mode of proof in any action becomes operative or any obligation is extinguished, any person who would have been a necessary party to such action or who was a party to such obligation was an enemy or was detained in enemy territory, the period so prescribed shall be deemed not to have run while the said person was an enemy or was so detained and shall in no case expire before the end of twelve months from the date when he ceased to be an enemy or to be so detained or from the date of the passing of this Act whichever is the later :

Provided that where any person was only an enemy as respects a business carried on in enemy territory, this section shall only apply so far as that person is concerned to actions or obligations arising in the course of that business.

The enactments hereinbefore referred to are—

the Act of the Parliament of Scotland, 1579 cap. 21,
the Act of the Parliament of Scotland, 1669 cap. 14,
the Act of the Parliament of Scotland, 1695 cap. 7,
section thirty-seven of the Bills of Exchange (Scotland)
Act 1772,
section four of the Employers' Liability Act, 1880,
section one of the Public Authorities Protection Act, 1893,
section ten of the Copyright Act, 1911,
section eight of the Maritime Conventions Act, 1911,
Rule 6 of Article III of the Schedule to the Carriage of
Goods by Sea Act, 1924,
subsection (1) of section thirteen of the Moneylenders
Act, 1927,
Article 29 of the First Schedule to the Carriage by Air
Act, 1932 ; ”

(b) in subsection (3) of section one after the words “ necessary party ” there shall be inserted the words “ or was a party to such obligation ”.

12 Geo. 3.
c. 72.

56 & 57 Vict.
c. 61.

Application to
Northern
Ireland.

5. In the application of this Act to Northern Ireland, the expression “ statute of limitation ” means any enactment (whether of the Irish Parliament or of the Parliament of the United Kingdom or of the Parliament of Northern Ireland) in force in Northern

Ireland at the date of the passing of this Act under which a period is prescribed as the period within which any action to which such enactment relates is required to be brought, but does not include any enactment prescribing a period within which any criminal proceedings, or any proceedings to recover any penalty imposed as a punishment for a criminal offence, or any proceedings before a court of summary jurisdiction must be brought.

6.—(1) This Act may be cited as the Limitation (Enemies and War Prisoners) Act, 1945. Short title
and date of
operation.

(2) This Act shall be deemed to have had effect as from the third day of September, nineteen hundred and thirty-nine.

CHAPTER 17.

Wages Councils Act, 1945.

ARRANGEMENT OF SECTIONS.

PART I.

ESTABLISHMENT OF WAGES COUNCILS.

Section.

1. Power of Minister to establish wages councils.
2. Applications for wages council orders and reference to commission of inquiry.
3. References to commission of inquiry without application for wages council order.
4. Proceedings on references to commission of inquiry.
5. Making of wages council orders.
6. Variation and revocation of wages council orders.
7. General provisions as to wages councils.
8. Central co-ordinating committees.
9. General provisions as to commissions of inquiry.

PART II.

WAGES REGULATION ORDERS.

10. Power to fix remuneration and holidays.
11. Effect and enforcement of wages regulation orders.
12. Permits to infirm and incapacitated persons.
13. Computation of remuneration.
14. Employers not to receive premiums.
15. Records and notices.
16. Criminal liability of agent and superior employer and special defence open to employer.
17. Officers.
18. Penalty for false entries in records, producing false records or giving false information.